



CHAPTER c.

An Act to confirm certain Provisional Orders of A.D. 1930.
the Minister of Health relating to Chippenham —
and Grimsby. [10th July 1930.]

WHEREAS under the provisions of the Public Health 38 & 39 Vict.
Act 1875 the Minister of Health has made certain c. 55.
provisional orders which need confirmation by Parlia-
ment :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders of the Minister of Health which are Orders in
set out in the schedule to this Act are hereby confirmed schedule
and shall have full validity and force. confirmed.

2. This Act may be cited as the Ministry of Health Short title.
Provisional Orders Confirmation (Chippenham and
Grimsby) Act 1930.

[Ch. c.] *Ministry of Health* [20 & 21 GEO. 5.]
*Provisional Orders Confirmation (Chippenham and
Grimsby) Act, 1930.*

A.D. 1930.

SCHEDULE.

RURAL DISTRICT OF CHIPPENHAM.

*Chippenham
Order.*

*Provisional Order dissolving the Corsham Special
Drainage District.*

WHEREAS the Corsham special drainage district in the parish of Corsham in the county of Wilts is comprised within the rural district of Chippenham and by virtue of section 229 of the Public Health Act 1875 the special drainage district and that portion of the parish of Corsham which is not comprised within the special drainage district are separate contributory places for the purposes of that Act;

And whereas the rural district council of Chippenham have borrowed money for the execution of works for the benefit of each of the contributory places aforesaid and the money so borrowed in respect of each contributory place is a separate charge on that contributory place by virtue of the enactment above-mentioned;

And whereas the rural district council of Chippenham have applied to the Minister of Health for the issue of a provisional order to dissolve the special drainage district and to merge it in the parish of Corsham:

Now therefore the Minister of Health in pursuance of the powers given to him by section 270 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

Short title
and com-
mencement.

1. This order may be cited as the Chippenham Order 1930 and shall come into operation on the first day of October nineteen hundred and thirty.

Interpreta-
tion.

2. In this order unless the context otherwise requires—

“the appointed day” means the first day of October nineteen hundred and thirty;

“the contributory places” means the contributory places consisting of the special drainage district of Corsham and that portion of the parish of Corsham which is not comprised within that special drainage district;

“the parish” means the parish of Corsham;

“the rural council” means the rural district council of Chippenham.

Dissolution
of special
drainage
district.

3. The Corsham special drainage district shall be dissolved and shall be merged in the parish.

[20 & 21 GEO. 5.] *Ministry of Health* [Ch. c.]
*Provisional Orders Confirmation (Chippenham and
 Grimsby) Act, 1930.*

4.—(1) So much of any sums borrowed by the rural council as immediately before the appointed day are owing and charged on the special rate of either of the contributory places shall on the appointed day by virtue of this order be charged on the special rate of the parish.

A.D. 1930.
 —
*Chippenham
 Order.*

Charge-
 ability of
 outstanding
 debt and
 expenses.

(2) Any expenses which immediately before the appointed day are payable by the rural council as special expenses incurred in respect of either of the contributory places shall on the appointed day be payable by that council as special expenses incurred in respect of the contributory place consisting of the parish :

Provided that nothing in this article shall affect the power of the Minister of Health under section 29 of the Local Government Act 1894 by order to direct special expenses to be raised in like manner as general expenses or the application to special expenses of the rural council of any provision of the Local Government Act 1929 enabling that council to contribute to special expenses from their fund available for general purposes.

5. All property held by the rural council on behalf of either of the contributory places shall on the appointed day by virtue of this order be held by the rural council on behalf of the contributory place consisting of the parish.

Property of
 rural council.

6. The order of the Local Government Board dated the fifth day of October eighteen hundred and ninety-one approving of the constitution of the Corsham special drainage district shall on the appointed day be repealed.

Repeal of
 order of
 Local Gov-
 ernment
 Board.

7. Nothing in this order shall affect the collection or recovery of any local rate which may be outstanding immediately before the appointed day.

Saving for
 local rates.

COUNTY BOROUGH OF GRIMSBY.

Provisional Order altering and amending a local Act.

*Grimsby
 Order.*

WHEREAS the county borough of Grimsby is an urban district of which the mayor aldermen and burgesses acting by the council are the local authority for the purposes of the Public Health Act 1875 and the council carry on a market undertaking under and subject to the provisions of certain local Acts ;

And whereas by section 11 of the Great Grimsby Improvement Act 1853 the Grimsby Corporation were empowered to acquire certain lands for the purposes of the Act with respect to

[Ch. c.] *Ministry of Health* [20 & 21 GEO. 5.]
*Provisional Orders Confirmation (Chippenham and
 Grimsby) Act, 1930.*

A.D. 1930. markets and by section 88 of that Act they were empowered
 — to borrow for the purposes of the Act sums not exceeding in the
Grimsby whole fifteen thousand pounds;
Order.

And whereas the Corporation have applied to the Minister
 of Health for the issue of a provisional order to alter or amend
 the local Act in the manner following :

Now therefore the Minister of Health in pursuance of the
 powers given to him by section 303 of the Public Health Act
 1875 and of all other powers enabling him in that behalf hereby
 orders as follows :—

Short title and com- 1.—(1) This order may be cited as the Grimsby Order 1930.
 mencement. (2) This order shall come into operation on the date of the
 Act of Parliament confirming it.

Interpreta- 2. In this order—
 tion. “The Act of 1853 ” means the Great Grimsby Improve-
 ment Act 1853;
 “The Corporation ” means the mayor aldermen and
 burgesses of the borough of Grimsby acting by the
 council;
 “The Minister ” means the Minister of Health.

Further 3. In addition to the lands which the Corporation were by
 powers for section 11 of the Act of 1853 authorised to acquire the Corpora-
 acquisition tion with the consent of the Minister may by agreement purchase
 of lands for take on lease or otherwise acquire and may use such further
 markets. lands or interests in lands as they may require for the purposes
 of their market undertaking.

Additional 4.—(1) In addition to the sums which the Corporation were
 borrowing by section 88 of the Act of 1853 authorised to borrow the Corpora-
 powers for tion may with the consent of the Minister borrow on the security
 markets. of the general rate fund and general rate of the borough of
 Grimsby such sums as may from time to time be required for
 the purposes of their market undertaking.

(2) Any moneys so borrowed shall be repaid within such
 period not exceeding sixty years from the date of borrowing as
 the Corporation with the sanction of the Minister may determine
 and that period shall with reference to the repayment of those
 moneys be the prescribed period for the purposes of the Local
 Loans Act 1875 and the provisions applied by paragraph (3) of
 this article.

(3) Subject to the provisions of this order the provisions
 of sections 164 to 171 of the Grimsby Corporation Act 1921 shall
 with any necessary modifications apply to moneys borrowed by
 the Corporation under this article as they apply to moneys
 borrowed by the Corporation under that Act.

[20 & 21 GEO. 5.] *Ministry of Health* [Ch. c.]
*Provisional Orders Confirmation (Chippenham and
Grimsby) Act, 1930.*

5.—(1) The Minister may direct any inquiries to be held by his inspectors which he may deem necessary for the purposes of this order and those inspectors shall for the purposes of any inquiry have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

A.D. 1930.

—
*Grimsby
Order.*

Inquiries and
expenses,

(2) Where the Minister causes any such inquiry to be held the costs incurred by the Minister in relation to that inquiry (including such reasonable sum not exceeding five guineas a day as the Minister may determine for the services of any inspector or officer of the Minister engaged in the inquiry) shall be paid by the Corporation and the Minister may certify the amount of the costs so incurred and any sum so certified and directed by the Minister to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

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